

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DENNIS TAYLOR,

Plaintiff,

-against-

THE CITY OF NEW YORK, SERGEANT GABRIEL
CUEVAS, Shield No. 26461, POLICE OFFICER
LISBETH COLON, Shield No. 16399, DETECTIVE
JOSEPH HICKEY, Shield No. 4177, POLICE OFFICER
MARINO, Shield No. 9677, POLICE OFFICER YOAN
DELACRUZ, Shield No. 21908, POLICE OFFICER
ANDREW TOFALLI, Shield No. 26431, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 22, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
SERGEANT GABRIEL CUEVAS, Shield No. 26461, 83rd Precinct, 480 Knickerbocker Ave, New York, NY 11237
POLICE OFFICER LISBETH COLON, Shield No. 16399, 77th Precinct, 127 Utica Ave., Brooklyn, NY, 11213-2338
DETECTIVE JOSEPH HICKEY, Shield No. 4177, 77th Precinct, 127 Utica Ave., Brooklyn, NY, 11213-2338
POLICE OFFICER MARINO, Shield No. 9677, 77th Precinct, 127 Utica Ave., Brooklyn, NY, 11213-2338
POLICE OFFICER YOAN DELACRUZ, Shield No. 21908, 77th Precinct, 127 Utica Ave., Brooklyn, NY, 11213-2338
POLICE OFFICER ANDREW TOFALLI, Shield No. 26431, Brooklyn North Anti-Crime Unit, 179 Wilson Ave., Brooklyn, New York 11237

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whom are unknown at present),

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff DENNIS TAYLOR, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on July 24, 2018, at approximately 6:50 p.m., plaintiff, was lawfully standing in the vicinity of 1735 Sterling Place, Brooklyn, New York when the individually named defendant police officers unlawfully stopped, questioned, frisked, searched, assaulted, battered, illegally seized, falsely imprisoned, falsely arrested plaintiff and subjected plaintiff to the use of excessive force, without reasonable suspicion, probable cause or any legal justification. Plaintiff suffered severe physical injuries caused by the assault, battery and excessive force used against him by defendants. The defendants falsely arrested/ imprisoned plaintiff for approximately 40 ½ hours until July 26, 2018 at approximately 11:25 am at which time plaintiff was arraigned in Kings County Criminal Court and charged with crimes he did not commit and for which defendants lacked probable cause to accuse him of committing. The Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial by providing the District Attorney's office false, misleading and incomplete evidence that formed the basis for prosecuting plaintiff for the crimes he was accused of committing.

Plaintiff was remanded into New York City Department of Correction custody at arraignment because he was unable to post bail and the unlawfully detention continued for 4 additional days at which time he posted bail and was released from custody. Plaintiff was required to appear in Kings County Criminal Court on 10 occasions to address the false criminal charges that were pending against him. On September 24, 2018 all felony charges were dismissed and sealed after the District Attorney's Office affirmatively moved to have the charges dismissed. The remaining charges were dismissed in their entirety on April 9, 2019. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff the right to a fair trial, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DENNIS TAYLOR is a resident of the state of New Jersey.
3. SERGEANT GABRIEL CUEVAS, Shield No. 26461, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. SERGEANT GABRIEL CUEVAS, Shield No. 26461, was at all times relevant herein, assigned to the Brooklyn North Anti-Crime Squad.
5. SERGEANT GABRIEL CUEVAS, Shield No. 26461, is being sued in his individual and official capacity.
6. POLICE OFFICER LISBETH COLON, Shield No. 16399, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. POLICE OFFICER LISBETH COLON, Shield No. 16399, is and was at all times relevant herein, assigned to the 77th Precinct.
8. POLICE OFFICER LISBETH COLON, Shield No. 16399, is being sued in his individual and official capacity.
9. DETECTIVE JOSEPH HICKEY, Shield No. 4177, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. DETECTIVE JOSEPH HICKEY, Shield No. 4177, is and was at all times relevant herein, assigned to the 77th Precinct.
11. DETECTIVE JOSEPH HICKEY, Shield No. 4177, is being sued in his individual and official capacity.
12. POLICE OFFICER MARINO, Shield No. 9677, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER MARINO, Shield No. 9677, is and was at all times relevant herein, assigned to the 77th Precinct.

14. POLICE OFFICER MARINO, Shield No. 9677, is being sued in his individual and official capacity.

15. POLICE OFFICER YOAN DELACRUZ, Shield No. 21908, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. POLICE OFFICER YOAN DELACRUZ, Shield No. 21908, is and was at all times relevant herein, assigned to the 77th Precinct.

17. POLICE OFFICER YOAN DELACRUZ, Shield No. 21908, is being sued in his individual and official capacity.

18. POLICE OFFICER ANDREW TOFALLI, Shield No. 26431, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. POLICE OFFICER ANDREW TOFALLI, Shield No. 26431, is and was at all times relevant herein, assigned to the Brooklyn North Anti-Crime squad.

20. POLICE OFFICER ANDREW TOFALLI, Shield No. 26431, is being sued in his individual and official capacity.

21. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers John Does #1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and a Hearing was held by the City of New York pursuant to General Municipal Law Section 50-h on April 12, 2019.

26. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

27. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

28. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

29. By way of background, at all times relevant herein plaintiff lived in New Jersey and on July 24, 2018 plaintiff drove from New Jersey to Brooklyn, New York to visit his mother at her home.

30. When plaintiff arrived in Brooklyn he lawfully parked his vehicle approximately 1 block away from his mother's home and began to walk from his vehicle to his mother's home.

31. As plaintiff was lawfully walking to his mother's home, he stopped briefly for a few seconds to say hello to two brothers he knew that lived at 1735 Sterling Place, Brooklyn, New York and who happened to be standing in front of their home when plaintiff was walking by.

32. When plaintiff briefly stopped to say hello to the two brothers, there were also 15-20 individuals with motorcycles who plaintiff did not know, standing in the vicinity of where plaintiff stopped to say hello to the two brothers.

33. On July 24, 2018, at approximately 6:50 p.m., while plaintiff was lawfully standing in the vicinity of 1735 Sterling Place, Brooklyn, New York saying hello to the two brothers, the individually named police officer defendants arrived at the location, exited their vehicles and began shouting commands for everyone to disperse.

34. It appeared to plaintiff that the defendants were attempting to get the 15-20 individuals with motorcycles to disperse from the location, and the two brothers that lived at 1735 Sterling Place invited plaintiff to come onto their property so that he would not be subjected to the police officers' orders to disperse and plaintiff was about to enter the brothers' property when defendant Sergeant Gabriel Cuevas began screaming at plaintiff to disperse.

35. Plaintiff attempted to inform the officer that he was with the individuals that lived in the house he was standing in front of at 1735 Sterling Place and was going onto their property, but when defendant Sergeant Cuevas ignored what plaintiff was telling him and continued to scream at plaintiff to disperse, plaintiff told the Sergeant, in sum and substance that he works for the people that live in the community, not visa versa and he is making things worse by not listening to what he was trying to tell the Sergeant.

36. In response to what plaintiff said to the Sergeant, the Sergeant became extremely angry and without provocation or legal justification Sergeant Cuevas charged at plaintiff and pushed plaintiff causing plaintiff to fall backwards onto a motorcycle that was parked near where plaintiff was standing

37. When plaintiff fell backwards onto the motorcycle, all of the individually named defendant police officers approached plaintiff and assaulted him, battered him and subjected him to the use of excessive force while plaintiff was laying on top of the motorcycle

38. Defendants continuously punched plaintiff in the ribs and the midsection of his body for approximately ten minutes without any legal basis to use force against plaintiff.

39. The excessive force used by defendants against plaintiff caused plaintiff to suffer physical injuries to plaintiff's back, ribs, and to his ears.

40. Defendants severely bruised plaintiff's ribs which caused plaintiff to have extreme difficulty breathing, and defendant's earrings in both ears were ripped out of his ears while the officers were using the excessive force against him which cased his earlobes to be torn.

41. At no time relevant herein did the defendants have an objective factual basis or probable cause to believe plaintiff was committing or had committed a crime or violated the law. In fact, at not time relevant herein did plaintiff ever violate the law or commit a crime.

42. Plaintiff was visibly injured by the defendants' use of excessive force against him and the defendants unlawfully handcuffed him and falsely arrested plaintiff without probable cause in order to justify how plaintiff was injured by the defendants.

43. Even though defendants did not suffer any significant physical injuries to their bodies, defendants fabricated allegations against plaintiff alleging that plaintiff assaulted Sergeant Cuevas.

44. Defendants used the fabricated allegation that plaintiff assaulted Sergeant Cuevas in order to justify why they used force against plaintiff and caused him to suffer physical injuries.

45. Sergeant Cuevas suffered injuries to his hand from unlawfully punching plaintiff, and he received medical treatment on scene for the injury to his hand. However, defendants falsely alleged that plaintiff caused physical injury to Sergeant Cuevas.

46. Notably, plaintiff was not provided medical treatment at the scene of the incident even though he was visibly injured and was having tremendous difficulty breathing because of the severe bruising to his ribs caused by the excessive force used by the officers against him.

47. Defendants unlawfully searched plaintiff, without probable cause and did not recover any illegal drugs, weapons or contraband from plaintiff pursuant to the search,

48. Defendants unlawfully handcuffed plaintiff, placed him in a police vehicle and transported him to the 77th Precinct against his will.

49. Plaintiff was in severe pain while he was being unlawfully detained at the 77th Precinct and he continued to have extreme difficulty breathing because of the injuries to his ribs caused by defendants.

50. Plaintiff requested medical attention and an ambulance responded to the 77th Precinct and transported him to Interfaith Medical Center to receive treatment for his injuries.

51. Plaintiff complained of back pain, pain in his ribs, and pain on his ears where his earrings were ripped through his ear lobes.

52. The medical staff at the hospital did not treat plaintiff's rib injuries or the injury to his back, but they examined his ears and cleaned the injuries to his ears in order to prevent them from getting infected. Plaintiff's ribs and back were not x-rayed and the injuries to those parts of his body were not diagnosed at that hospital.

53. Plaintiff was discharged from Interfaith Hospital and returned to the 77th Precinct where he was detained in a holding cell for many hours.

54. After many hours, plaintiff was transported by defendants to Central Booking, but as plaintiff was entering the Central Booking Facility it was apparent that plaintiff was in severe pain and was having difficulty breathing because of the injuries to his ribs

55. Therefore, the staff at Central Booking called an ambulance to Central Booking and plaintiff was transported to NYU Langone Health System's facility in Cobble Hill for additional medical treatment. Plaintiff's ribs were examined by medical staff at this facility and X-Rays were taken. Plaintiff was diagnosed with severe bruising to his ribs and prescribed medication for the pain.

56. Thereafter, plaintiff was released from the hospital and returned to Central Booking where he was unlawfully detained in holding cells with other prisoners for many hours.

57. The defendants provided the Kings County District Attorney's Office with fabricated, false, misleading and incomplete evidence and allegations that they purportedly used to establish probable cause to arrest and prosecute plaintiff.

58. The defendants denied plaintiff the right to due process/ right to a fair trial and initiated a criminal prosecution against plaintiff without probable cause.

59. On June 26, 2018 at approximately 11:25 am, after plaintiff was unlawfully detained and falsely arrested by defendants for 40 ½ hours, plaintiff was arraigned in Brooklyn Criminal Court, and charged with felony and misdemeanor crimes that he did not commit and based upon allegations fabricated by the defendants.

60. Due to the severity of the felony charges that plaintiff assaulted the defendants, the Court set bail at \$5,000 and plaintiff was not able to post bail at that time.

61. Therefore, plaintiff was remanded to the custody of the Department of Correction.

62. Plaintiff was unlawfully detained in a Department of Correction jail for an additional 4 days before he was able to post bail and was released from custody.

63. Plaintiff was required to appear in Kings County Criminal Court on 10 occasions to address the false criminal charges that were pending against him.

64. On September 24, 2018 all felony charges were dismissed and sealed after the District Attorney's Office affirmatively moved to have the charges dismissed.

65. The remaining charges were dismissed in their entirety on April 9, 2019.

66. Plaintiff was employed full time as a cook at the Cheesecake Factory on June 24, 2018, but he was fired from the job when he was unable to keep up with the work pace after this incident because he was he continued to have severe pain from the bruising to his ribs and difficulty breathing and it took many months for the injuries to plaintiff's ribs to heal.

67. Plaintiff suffered lost income from being fired from his job and he was unable to find a new job where he could work while he recovered from the injuries to his ribs.

68. Without income, plaintiff could not pay his bills and was evicted from his apartment because he fell behind paying his rent.

69. The lack of income and being evicted from his apartment caused plaintiff to suffer from extreme emotional distress and anxiety.

70. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

71. At no time prior to seizing plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

72. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime.

73. At no time relevant herein was plaintiff in possession of any drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe plaintiff possessed drugs, weapons, or contraband of any kind.

74. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

75. The officers knew they lacked probable cause to arrest plaintiff because they fabricated the allegations against him in order to create a plausible justification for using force against plaintiff and injuring him.

76. The unlawful stop, question, frisk, search, false arrest, false imprisonment, assault, battery, use of excessive force, malicious prosecution, and the denial of the right to due process/ a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

77. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

79. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

85. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

87. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

92. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

94. Defendants lacked probable cause to search plaintiff.

95. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

99. Plaintiff repeats and realleges paragraphs 1 through 98 as if fully set forth herein.

100. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

101. Defendants commenced and continued a criminal proceeding against plaintiff.

102. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

103. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

104. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

107. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 106 with the same force and effect as if fully set forth herein.

108. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

109. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

110. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

111. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

112. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment

Rights: Excessive Force

115. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 114 with the same force and effect as if more fully set forth at length herein.

116. The use of excessive force by defendants by pushing plaintiff backwards onto the motorcycle and repeatedly punching plaintiff in the ribs for an extended period of time was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States. Additionally, placing plaintiff in handcuffs and iron leg shackles to be transported via ambulance for medical treatment was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

117. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

118. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

EIGHTH CAUSE OF ACTION

Assault

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

121. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

122. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

123. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Battery

125. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 124 with the same force and effect as if more fully set forth at length herein.

126. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

127. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

128. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

129. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

130. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Negligence

131. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 130 with the same force and effect as if more fully set forth at length herein.

132. Defendants owed a duty of care to plaintiff.

133. To the extent defendants claim that plaintiff's physical injuries were not caused by the defendants during the course of plaintiff's arrest, and instead were accidentally caused by defendants either before or after they arrested plaintiff then defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior.

134. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

135. All of the foregoing occurred without any fault or provocation by plaintiff.

136. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

137. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

138. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

139. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 139 with the same force and effect as if more fully set forth at length herein.

140. By using excessive force against plaintiff for absolutely no legal reason and then fabricating allegations against plaintiff to justify why defendants injured him defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

141. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

142. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

143. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

144. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

145. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 144 with the same force and effect as if more fully set forth at length herein.

146. The above-described conduct by using excessive force against plaintiff for absolutely no legal reason and then fabricating allegations against plaintiff to justify why defendants injured him, defendants' conduct was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

147. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

148. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

149. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare and justify the award of punitive damages.

150. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

151. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

152. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Failure to Intervene

154. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 153 with the same force and effect as if more fully set forth at length herein.

155. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

156. Defendants failed to intervene to prevent the unlawful conduct described herein.

157. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

158. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

159. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Negligent Hiring, Retention, Training and Supervision

JURY DEMAND

PRAYER FOR RELIEF

By: /s/
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Attorneys for Plaintiff
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ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 22, 2019

/s/
DAVID M. HAZAN